



How to Assess Rule-of-Law Violations in a State of Emergency? Towards a General Analytical Framework

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Accepted: 18 August 2024 / Published online: 2 September 2024
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Abstract

According to conventional wisdom, we are living in an era of constant emergencies. The subsequent crises cannot always be handled effectively within the normal legal system, so many countries have introduced some type of emergency, i.e., a special legal regime, to deal with them. However, exceptional power per se poses a threat to democracy, as those in government can use it for their own political gains, curb civil liberties, and subvert the rule of law. The article takes the principled position that emergency situations can be legally regulated, and argues that certain standards of the rule of law should not be waived even in a special legal order. The article discusses how to assess whether the exceptional power is being abused, i.e. whether it is illegitimately limiting the rule of law. For this purpose, it proposes an assessment framework whose criteria can be used in any constitutional democracy to check the legality of the extraordinary power exercised in a state of emergency. The study examines also the possible counter-arguments that could question the success of such an undertaking, and provides answers to these challenges. After that, it explains in detail the rule of law standards for the exercise of exceptional power, the separation of different emergency powers, the requirements of legality, temporariness, purpose-limitation, necessity and proportionality, and controllability, as well as those areas that are untouchable even for the extended power. The justification of these criteria also receives special attention in the study.

Keywords Rule of law requirements · State of emergency · Exceptional power · Constitutional crisis management

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1 Introduction

According to conventional wisdom, we are living in an era of constant emergencies. And indeed, the global economic crisis that started in 2008, the Covid-19 pandemic that broke out at the end of 2019, the climate crisis, mass migration and international terrorism that cannot be linked to a specific date are all global crises, and the wars between Russia and Ukraine, and Israel and Hamas reinforce this feeling.¹ These crises cannot always be handled effectively within the normal legal system, so many countries have introduced some type of emergency, i.e., a special legal regime, to deal with them. This means that the State abandons its normal scope of operation, and the executive is usually provided with exceptional powers to manage the serious crises that threaten the State or society or to avert their danger or consequences. However, in democratic countries, this gives rise to the well-known conundrum associated with emergencies, whereby individuals or bodies are given exceptional powers that would be unacceptable in a democracy under a rule-of-law system to preserve or restore democracy and the rule of law. This is because exceptional power per se poses a threat to democracy, as those in government can use it for their own political gains, curb civil liberties, and subvert the rule of law.²

Many think that the latter cancel each other out; at least, one can imagine situations when there is a choice to be made between them, i.e. there may be serious risks that can only be addressed by giving up the rule of law (or even law itself). In contrast, in this article, I argue that the conflict between the interests of risk management and the rule of law can be resolved not only by eliminating one or the other (even if only temporarily) but also by balancing their importance. This approach, however, raises a number of problems (though not as serious as the complete sacrifice of the rule of law in an emergency): How can the values of the rule of law be preserved at a time of successive, almost constant crises, when the very concept of the rule of law is contested and threatened by various sorts of distresses that clearly require different responses? Is it at all possible to provide a somewhat general system of criteria for the protection of rule-of-law values that is equally valid for constitutional systems with different legal traditions and cultures that operate different emergency regulatory regimes?

In the following, my claim is that certain standards can be specified for emergency situations which are suitable for the protection of the fundamental values associated with the rule of law for different types of crises and for different legal systems. These can also be yardsticks on the basis of which it can be assessed whether the exceptional power granted to deal with the emergency is properly used by the body authorized to do so or whether it is abused. This requires a qualitative analysis (examining whether the exercise of the extraordinary power meets the pre-defined

¹ On the on the concept of “constitutional polycrisis” and the cumulative effects of successive crises, see Belov (2023) pp. 21–46.

² Lobel (1989), pp. 1386–1390.; Criddle and Fox-Decent (2012), p. 45; Pozen and Scheppele (2020), p. 608.

criteria established specifically for emergency situations), and it can be applied to individual measures as well as to evaluate general practice.

In this respect, two disclaimers must be made. First, even if some of the requirements explained below are formal in nature, these standards can only apply to real, functioning constitutional democracies based on the system of the rule of law. If, for example, the courts in a country are not independent, then the otherwise formal aspect of judicial protection as an institutional guarantee probably does not provide any defence for the rule of law. Indeed, in autocracies, it may be easy to demonstrate the enforcement of these requirements, but they are likely to be used only for maintaining the appearance of democracy or the rule of law without any real effect. Second, it should also be stated that the enforcement of the standards proposed below is not sufficient in itself to ensure that democratic and rule-of-law values are preserved or restored during or after emergency situations. However, even if they are not sufficient, they are necessary for this end. It is possible, of course, that in some countries, the restoration of democratic normalcy can be achieved despite the fact that these requirements are not fully enforced. But it is still better to have clear and predetermined limits and guarantees against exceptional power than only to trust that those authorized with the latter will be committed enough to democracy to actually restore it.

Below, I will first deal with the question of whether it is even possible to define special rule-of-law criteria for emergency situations. Several objections can be raised against such an undertaking, especially those that refer to the conceptual indeterminacy of the rule of law and the state of emergency, according to which there is a paradoxical relationship between these two legal concepts. Therefore, Part I concerns what these challenges are and what kind of answers can be given to them. After that, Part II determines the rule-of-law requirements applicable in emergency situations. During the identification of these standards, I will briefly describe the common characteristics of these criteria and make suggestions for how the various requirements can be justified.

2 The Challenges of Defining Rule-of-Law Requirements in Emergency Situations

Even if we accept that it is a sensible and useful undertaking to define the requirements of the rule of law in emergency situations in order to be able to assess whether exceptional power is (not) being abused, an important question is whether this endeavour is feasible. Does not the inevitable conceptual vagueness resulting from the different national regulations associated with a state of emergency and the diversity of scholarly understandings make it impossible to establish such common standards? Further, due to the dichotomy of normalcy/exceptionalism and the blurred boundaries between them, can the requirements of the rule of law be extended to situations in which even the existence of the legal system itself is at stake? In order to address these questions, we need to find answers to the most important conceptual and substantive challenges.

2.1 The Conceptual Challenge

The conceptual problems arise from the fact that neither the concept of the rule of law nor emergency situations are consensually defined, and therefore, their individual definitional criteria are also contested. In reality, however, all constitutional principles are very general and abstract, but that does not mean that they cannot be subject to meaningful discourse. Accordingly, since the rule of law is one of the fundamental values of the European Union and is now widely held to be an enforceable part of EU law and a principle enshrined in the constitutions of most democratic states, it is inevitable to examine the extent to which it applies in reality, especially in situations when it is particularly vulnerable. Finally, as we will see, for our purposes, a concept of the rule of law and a state of emergency that is general and inclusive enough to be widely acceptable is sufficient, regardless of the endless conceptual debates. This means taking the key elements of the latter legal categories as a basis.

Regarding the very basic definition of the rule of law, this principle means primarily that public power must be exercised by law and in accordance with law. In this respect, the formal principles of legal certainty, the protection of legitimate expectations, giving reasons, reasonable deadlines for decision-making, and the right to appeal come into play. However, since our examination covers only constitutional democracies, the formal(ist) notion of the rule of law is not sufficient, and we must consider its substantive concept,³ i.e. the “material understanding of the rule of law”⁴ granted in line with the principles of the common heritage of European constitutionalism, as required by the European Union’s Founding Treaty⁵ and the constitutional systems of European democracies.⁶ Among the values of the rule of law, for our purpose, it is enough, however, to refer only to the very fundamental principles which are consensual today, such as the separation of powers and the respect of fundamental rights and their major components, such as the primacy of the Constitution and the hierarchy of legal norms, legal certainty, the free election of representative bodies, judicial independence, equality before the law, freedom of expression, and so on.

Like the rule of law and other abstract concepts, the concept of “state of emergency” is not precisely and consensually defined, but this does not mean that we should reject its use since, as a legal category, most legal systems use it and define it for themselves. Based on this, the conceptual elements that are present in most constitutional systems can be determined. The most important conceptual components of an emergency as a legal concept are the fundamental constitutional values protected by a special legal order, the serious crisis or danger (risk) that threatens them, and the exceptional power granted to deal with that exigency. Within this conceptual

³ This kind of distinction is well established in the rule of law literature. See, for example, Raz (1979), p. 224.; Dworkin (1985), pp. 11–12.

⁴ Grimm (2021), pp. 52–55.

⁵ Article 2 of the Treaty on European Union.

⁶ See e.g. Sellers and Tomaszewski (2010).

framework, in general, the entire State and constitutional order, as well as society as a whole or the life, safety and property of a large number of citizens, are usually classified as fundamental constitutional values to be protected. The typical conceptual elements of the threat are its urgency, concreteness and scale.⁷ A threat is urgent if it must be dealt with immediately in order to eliminate or mitigate its negative effects on the protected values. It must be concrete and not just theoretical, even if it is potentially legitimate to introduce a state of emergency not only to deal with a crisis that has already occurred but to avert a serious risk or threat if there is a realistic chance of its occurrence. The crisis, danger or threat must be concrete and immediate and can only be averted by expanding the State's options for action, i.e. by providing exceptional power to the State.⁸ Similarly to the concreteness of the danger, it is not possible to determine in advance or, even in general terms, the severity or extent of the threat that justifies the introduction of a special legal regime.⁹ But it is precisely this uncertainty that justifies the need to lay down clear procedural rules for making such a decision. The crisis or threat must be of such a scale or gravity that it cannot be managed or averted within the normal legal order but only by granting exceptional powers to the government.

Defining emergency situations is undoubtedly difficult, but the relevant regulation can create procedural and institutional rules for the bodies authorized to decide on the introduction of a state of emergency at a given moment. The legal approach to the state of emergency is therefore based on the following logic: in the case of a crisis or danger that seriously threatens the functioning of the State or society, if the latter cannot be dealt with within the framework of the normal legal order, a special legal order may be introduced through which exceptional powers are granted to the State to enable it to overcome the crisis or avert the danger.¹⁰ According to this logic, a state of emergency in the legal sense means an exceptional situation compared to the normal legal order, the purpose of which is to restore normalcy by removing the threat.¹¹

2.2 The Substantive Challenge

The relationship between the rule of law and the state of emergency is perceived by many as a kind of paradox—namely that in a situation of danger, in order to protect or restore the rule of law, it may be necessary to use means that violate the latter principle.¹² In other words, the “emergency constitutions” (that is, the constitutions that contain provisions for the state of emergency) temporarily suspend the constitutional order with the goal of restoring it.¹³ From this contradiction comes the

⁷ Lazar (2009), p. 7.

⁸ Zwitter (2012), pp. 97–98.

⁹ Olsson (2009), pp. 106–107.

¹⁰ Lauts (2015) p. 41.

¹¹ Depenheuer (2020), pp. 31–32.

¹² Tusseau (2011), p. 501; Lazar (2009), p. 2.

¹³ Bjørnskov and Voigt (2018), p. 103.

so-called (neo-)Schmittian conception of the state of exigency: this involves a substantive challenge to any attempt to operationalize rule-of-law standards during an emergency. According to this approach, law and exigency are two mutually exclusive phenomena, so the state of emergency is outside the domain of law, creating a “legal black hole”, i.e. a situation that cannot be interpreted by legal tools and in relation to which the law can only determine who is the “sovereign”.¹⁴ This sovereign is the one who can decide on the state of emergency and on the means to be used to avert it without any legal constraints. The present-day proponents of the so-called “extra-legal measures model of emergency powers” think that public officials who are in charge of managing emergencies can use extra-legal means if necessary, although they must be held responsible for the methods they use.¹⁵ This position is ultimately based on the argument, already used by Carl Schmitt, that since dangers cannot be foreseen or calculated in advance, the means of averting them cannot be determined in advance, either.

However, my approach is based on the presumption that the emergency as such does not stand outside the sphere of law, i.e., it can be conceptualized in legal terms.¹⁶ In this regard, the empirical evidence (the vast majority of constitutions and legal systems provide for special legal regimes that can be declared in times of emergency¹⁷) is important, but it is even more meaningful that if constitutionalism and the rule of law are fundamental (legal) values, then there is no reason to give them up completely. While future political stalemates and constitutional crises cannot be foreseen either, no one thinks that the Constitution should avoid specifying rules on the relations between government bodies.

Moreover, it is not the case that we cannot know at all what threats and crises may occur in the future. This might be true only in extreme, less realistic cases (e.g. an attack by Martians would be considered such a situation). Naturally, it is usually unpredictable when, where, and with what intensity a potential emergency will take place.¹⁸ Of course, this amounts to significant uncertainty, but it is not true that the law, which so often applies framework rules or content-neutral procedural norms, is completely unarmed against future threats.

Note then, the idea of “constitutional dictatorship” (a normative claim that even an authorisation for unlimited power can be justified in order to overcome

¹⁴ “The precise details of an emergency cannot be anticipated, nor can one spell out what may take place in such a case, especially when it is truly a matter of extreme emergency and of how it is to be eliminated. The precondition as well as the content of jurisdictional competence in such a case must necessarily be unlimited. (...) The most guidance the constitution can provide is to indicate who can act in such a case.” Schmitt (2005), p. 12. See also Greene (2018) p. 105.

¹⁵ Agamben (2005), p. 50; Gross and Ní Aoláin (2006), pp. 110–170.; Gross (2008), p. 60.; Posner and Vermeule (2011).

¹⁶ For this, see also Dyzenhaus (2006); Campbell (2008) p. 214.

¹⁷ On national emergency regulatory regimes, see Heymann (2003); Ferejohn and Pasquino P (2004); Dyzenhaus (2013), pp. 446–451.; Ramraj and Guruswamy (2015), pp. 86–87.; Frankenberg (2018), pp. 278–279. and Verdaschi and Graziani (2022) pp. 388–389. In fact, even for those legal systems that do not have special emergency rules, the reason for this is often not the neo-Schmittian understanding but the belief that the State can manage the exigency with the means of the normal legal order.

¹⁸ Lazar (2009), p. 2.

the crisis)¹⁹ and that the extra-legal approach of a state of exception was usually deployed for use in extreme situations when the pure existence of the State was in distress.²⁰ It is no wonder that if we adhere to such an extreme interpretation of threats that it is much easier to argue that any means for the latter's protection (including the illegal and unconstitutional exercise of power) is allowed. Although this may be convincing argumentation, it is worth remembering that, on the one hand, international law prescribes many restrictions even in the event of war (i.e., legal standards exist even in such circumstances), and, on the other hand, that such extreme cases rarely occur in reality among constitutional democracies. But whatever extreme circumstances exist, sacrificing the rule of law for the sake of the rule of law would be the real paradox.

Finally, once we give unbridled power to the government and suspend the constitution in the hope of successful crisis management, it is not clear what will guarantee a return to constitutional and rule-of-law norms²¹.

All things considered, the question of the existence or abandonment of the rule of law in a state of emergency is a false dilemma; the real question is the legitimate extent of the limitation of the rule of law.

From the neo-Schmittian perspective comes the often-stated claim that in extraordinary situations, courts should not review emergency decrees and measures because they simply do not have the capacity to do so, i.e. they lack sufficient information and expertise. These are available only to the executive power (or other bodies entrusted with crisis management); this is why they have been given exceptional powers. There is indeed a lot of truth in this argument: courts really should defer to the government in such cases because they will hardly be able to more appropriately judge the effectiveness of tools that are used than the government, which usually centralizes information, resources and powers in emergency situations. The practice also confirms this: the courts are often reluctant to review emergency measures.

However, the question is not whether the courts should review the effectiveness of the government's emergency measures. It rather concerns whether the courts should examine whether the limitation of fundamental rights and democratic decision-making in a specific case is legal or justifiable. As much as they are not competent to judge the effectiveness of crisis management, they are competent to review the justification for restrictions of fundamental rights since their primary function is to ensure the constitutional and legal protection of rights and democracy. Of course, it may be asked if the courts do not have the appropriate expertise to review the effectiveness of emergency measures, then on what basis can they decide on the justification of legal restrictions? It is true that the borders between effectiveness and justifiability are blurred. However, it does not follow from this vagueness that the courts should never be able to review the appropriateness of emergency measures. Imagine, for example, that the government, using its exceptional power, introduced a 10 day curfew during a mass epidemic. In this case, a court decision that annulled

¹⁹ Rossiter (2002).

²⁰ See, for example, Tushnet (2005); Ackerman (2007) Posner and Vermeule (2007); Masferrer (2012).

²¹ Finn (1991), pp. 18–19.

the measure on the basis that a 1 week curfew would be sufficient would hardly be defensible. However, suppose that the government imposed a 6 month curfew without having any reliable information about what the health situation would be 6 months hence. In this case, it would be very appropriate for the court to declare the restriction disproportionate without specifying its correct duration.

All this means that there is no sufficient reason to accept the extra-legal nature of emergencies. On the contrary, there is good reason to reject the constitutional dictatorship model. Exceptional power exercised during a state of emergency must not mean authoritarian governance; that is, the rule of law as a whole should not be suspended, but rather, it may be limited under the law.

The real question is, then, what kind of limitation of the rule of law may be accepted for the sake of effective crisis management, and what values are associated with this, the abandonment of which cannot be justified? In other words, is it possible to define the requirements for introducing an “emergency rule of law”? Is it possible to specify criteria for a reasonable assessment of the exercise of exceptional power? When can we say that the former is justified or, on the contrary, abusive because it unduly restricts the values associated with the (emergency) rule of law?

3 General Features of Emergency Rule-of-Law Standards

Once we have ruled out the extra-legal nature of the emergency, that is, we consider the relationship between exigency and the rule of law as a non-zero-sum game, then the only possible solution is to balance the two conflicting interests. To put it another way, to construe the plausible rule-of-law requirements in a state of emergency, the key issue is to strike a delicate balance between the effectiveness of crisis management and the prevention of the core values of the rule of law. The exercise of exceptional power can be legitimate if it is done within the framework of the law. However, this is only a necessary but not a sufficient condition. Since the State intervention or the derogation of fundamental rights in such a situation is so extensive that it would normally be unacceptable, the burden of proof when judging the reasonableness of the use of extraordinary means falls on the person who declared (or prolonged) the state of emergency, or the exerciser of the exceptional power. But what are the standards of proof—i.e., how can the interests of effective crisis management and the preservation of the fundamental values of the rule of law be reconciled?

Since protected constitutional values can be threatened to different degrees by different types of threats, the extent to which rule-of-law values are constrained may also vary. As a consequence, it is only possible to assess whether the exceptional powers granted by the special legal order to deal with a crisis have been abused on a case-by-case basis in light of the threat to be averted and the means used to overcome it.

I argue that these standards can be derived from the functions of the state of emergency and the rule of law. In addition, the recommendations of certain international

organisations,²² the requirements of the constitutions of modern democracies²³ and the literature²⁴ may also contribute to defining rule-of-law standards for exercising emergency powers.

These requirements have several common features. In their legal nature, they are not rules but standards. This means that they are general norms that define the limits of the exercise of exceptional power. Although, as we shall see, in some cases, they work as rules (such as that the operation of certain control institutions cannot be suspended during a state of emergency), they are usually abstract principles and do not in themselves limit the possibilities for crisis management action, but merely provide the possibility for doing so.

Basically, these standards, since their ultimate goal is the same, are more or less similar to the requirements that apply to the rule of law within normal frameworks; only their extent and scope, but not their essence, are different.

It is important that the individual requirements are related to each other; if, for example, an aspect can only be partially enforced (e.g. it is unpredictable what kind of economic intervention may be needed during the management of a special crisis), then it can be offset by meeting other requirements.

One part of the rule-of-law requirements to be enforced during emergency situations refers to the special legal order itself, while other standards apply to the exceptional power and its tools. According to another grouping principle, a distinction can be made between substantive and procedural criteria, the former meaning the values to be preserved even during an emergency, the latter implying the specific rules of the decision-making procedure. Then, the emergency rule-of-law standards can also be classified according to which stage of the emergency they are related to, from the declaration of a state of exception through the exercise of exceptional power to the termination of the special legal order. However, this classification is not accurate, as there are several requirements of the rule of law that are not only linked to a phase of the emergency but must be valid at several stages or even throughout.

Below, I will discuss the individual requirements of the state of law roughly according to the latter point of view concerning the fact that some standards cannot be linked to a specific phase of the emergency situation.

²² As, for example, the UN's so-called Principles of Syracuse: Siracusa Principles on the Limitation and Derogation of Provisions in the International Covenant on Civil and Political Rights Annex, UN Doc E/CN.4/1984/4 (1984). See also: International Commission of Jurists: States of Emergency: Their Impact on Human Rights. Geneva, 1983.; European Commission for Democracy through Law (Venice Commission): Emergency powers. CDL-STD(1995)012, Strasbourg, 1995.

²³ For a European comparison of the constitutional rules regarding the special legal order, see Khakee (2009).

²⁴ See e.g. Alford (2017), pp. 12–29.

4 Assessment Criteria for Rule-of-Law Violations During a State of Emergency

4.1 Separation Between Declaring/Terminating and Emergency Powers

From the point of view of the limitation of the exceptional power, it is an important rule-of-law requirement under an emergency that the authority that declares a state of emergency and the exercise of the exceptional power should be institutionally separated.²⁵ In other words, the exercise of exceptional power should not be based on self-authorization. The obvious explanation for this is that the government may be too tempted to significantly expand its own power, especially if the enforcement of its political will is limited by other bodies or the basic rights of citizens are a serious obstacle to achieving its goals.

Two counterarguments can be raised against this requirement. First, in practice, many constitutions give the same body (usually the government) the right to declare a state of emergency that exercises exceptional power. Based on this criterion, many States, including old, strong democracies, could be accused of a rule-of-law deficit, while there would obviously be little chance of corresponding constitutional changes. Second, even if it would be better from the point of view of democratic considerations if the special legal order were to be proclaimed by the legislature in all cases after careful consideration of the circumstances giving rise to it, this would cause serious damage in a significant number of cases, given the time required for legislative decision-making or its potentially perverse results.²⁶ In the case of an unexpected external military attack, for example, it would be pointless to wait for the legislature's decision before starting defensive action, but the same is true in the case of an unexpected natural or industrial disaster.

However, this tension between the principle of democracy and efficiency can be alleviated through the application of a reasonable framework, as many constitutions do in a way that, although they really reserve the right to introduce a special legal order for the representative body, they allow temporary deviation from this rule, authorizing the government to do this in cases of exigency, which decisions are subject to the subsequent examination of the legislature. In this way, crisis management does not suffer irreparable damage and democratic control is also ensured, even if only after the fact, which will obviously be less effective than a prior approval procedure due to an emergency situation.

The same criterion also applies to the termination of the emergency because, on the one hand, the decision to abolish it is a logical part of the constitutive power regarding the state of emergency, and, on the other, the exercise of exceptional power can be a strong temptation for its practitioner(s).

²⁵ Friedrich (1937), p. 210; Rossiter (2002) p. 299; Jabauri (2020) p. 135; Bjørnskov and Voigt (2018) p. 109.

²⁶ Vermeule (2014) p. 141.

4.2 Legality

From the understanding that the state of emergency is also part of the legal order, albeit a special form of it, it directly follows that the exceptional power can only be exercised within the limits of the law. Legality is the basic principle of the rule of law even under normal conditions,²⁷ but in a situation of emergency, the standards are obviously different since the exercise of power must comply with the rules of the special legal order.

The principle of legality can be understood in a strong or weak sense. It is a weak version of legality when the authorizing legal norm grants unlimited power for State authorities to avert crises. This is the case when, though there is constitutional authorization to exercise exceptional power, it is only a constitutive act, without limiting its potential for action, stating, for example, that the government can take all necessary measures to eliminate the crisis.²⁸ However, this is a legal paradox, as it provides, in essence, a legal basis for acting outside the law. Proponents of this concept believe that after the end of the state of emergency, bodies or persons with unlimited power will voluntarily renounce their exceptional power and subject themselves to accountability for all their actions. But this involves only an uncertain appeal to the good faith and democratic commitment of those who have been granted unbridled power. If we trust that those exercising absolute power will voluntarily relinquish their unrestricted freedom of action when it is no longer necessary to overcome the crisis threatening the State or society, then there is usually no need for any precautionary measures or rule-of-law guarantees.

It is important, therefore, that a strong version of legality must prevail, which means that open-ended or unlimited authorization does not fulfil this criterion, i.e., unlimited exceptional power is not made legitimate simply because the former has a formally legal basis.²⁹

4.3 Temporariness

The temporary nature of the state of emergency must also be a rule-of-law requirement in a state of emergency. Otherwise, the constitutional exercise of power may be replaced by the established exceptional power. If the only legitimate purpose of an emergency power is to avert a threat, it logically follows that the former can only last as long as the reasons for its imposition or conditions which gave rise to its adoption really exist. According to the strong version of this requirement, exceptional power should not be granted without a provision regarding the date of its termination. As Clinton Rossiter supposed, it is easier to introduce a national emergency than to

²⁷ Fuller (1964) ch 2.; Raz (1979) p. 210; Shapiro (2011); Allan (2023).

²⁸ The best-known example of this type of regulation is Article 48 of the Weimar Constitution of 1919 in Germany. See for this Jestaedt (2018), pp. 242–243.

²⁹ “A constitution which fails to provide for whatever emergency action may become necessary to defend the state is simply defective.” Rossiter (2002), p. 301.

terminate it.³⁰ Also, the prolongation of the state of emergency is inherently associated with the risk of abuse³¹ because it makes the special legal order permanent, and thus, it equates exception with normalcy. Nevertheless, it is not advisable to define an absolute deadline in advance because crisis situations may arise (such as war or the outbreak of an unknown mass epidemic) when termination is not even remotely foreseeable. To reconcile the opposing interests of the temporality of the state of exception and the unpredictability of certain grave threats, a number of constitutions define a limited time for certain special emergency situations but allow their extension to be subject to legislative scrutiny and approval. The purpose of such scrutiny is to determine whether the legal conditions for an emergency situation still exist after the predetermined time. However, this can only be done by an external body, i.e. the authority to extend or terminate the state of emergency must also be separated from the exercise of exceptional power; otherwise, the time limitation is rendered meaningless, i.e. it loses its guarantee function.

Another risk may arise if political actors try to convince people that it is no longer possible to talk about normal times because, due to successive crises, the state of emergency is permanent. Such political propaganda appeals to ordinary citizens' sense of threat because social panic facilitates the acceptance of exceptional power. Then, if threats become persistent or regularly recurring, the extraordinary measures can become institutionalized and thus permanent.³²

But even if it is true that in our time, crises are overlapping, they are usually of different types and require different cures. And even if we were to face the same longstanding (poly)crisis, having a time limit on the extraordinary power (and its counterweights) would be an important interest. Otherwise, we would have to accept that the government may always have exceptional powers, that basic rights can constantly be severely restricted, and that the democratic procedures of public decision-making can continuously be perverted.

The risk that the exceptional power granted to manage emergency situations becomes permanent is clear. However, this situation may involve not only an indefinite or routinely extended government by decree but also that its provisions are built into the regular legal system so that the government can retain special powers without the need for a special legal order. This is the so-called "seepage problem": emergency rules may seep into regular law. The requirement of temporariness, therefore, has another dimension: the temporal effect of the adopted emergency measures and decrees must be limited. Put simply, provisional rules should indeed be provisional.

The latter risk is not only theoretical; in recent years, a number of countries have tended to make laws by ordinary legislation to deal with ongoing or future emergencies, so many extraordinary measures have been perpetuated by a kind of creeping law-making. Nonetheless, it is possible that the need for certain provisions became clear precisely because of the emergency or that the state of exception gave rise to regulatory needs that had not previously arisen but that recent developments have

³⁰ Rossiter (2002), p. 300.

³¹ Jabauri (2020) pp. 134–138.

³² Buzan, Wæver and de Wilde (1998), p. 27.

demonstrated to be important and topical. Therefore, the incorporation of extraordinary rules into normal law, to a certain extent, cannot be objected to in itself. However, the survival of exceptional provisions cannot be automatic. Emergency measures should become permanent only as a result of careful legislative consideration.

4.4 Purpose Limitation

One of the biggest risks of emergency situations is that the exceptional power granted to avert them is used not (only) to overcome the crisis but for other purposes³³; above all, to consolidate, expand and perpetuate the executive's own power.

The principle of purpose limitation means two things. On the one hand, it signifies that the extended powers conferred by the specific authorisation may be used only to prevent the threat for which the authorisation is intended. So, the objective of this requirement is to prevent the power-holder from using the excess powers for other illegitimate purposes. The problem may be that emergencies may generate additional threats of other types. A major industrial accident could lead to a natural disaster, as exemplified by the nuclear accident at the Chernobyl nuclear power plant (domestic security threats and health crises can have severe economic consequences). It is also true that different types of emergencies generally require different types of responses. A tempting option when dealing with special emergencies is granting general, complex, all-encompassing powers that can make it difficult to control the compliance and enforcement of emergency rule-of-law standards. In fact, the prevention of different types of threats requires different tools, even if similar rights (e.g. privacy rights or political freedoms) must be restricted.³⁴ For example, anti-terrorist measures could include pre-trial detention, the suspension or limitation of habeas corpus and secret surveillance, while the prevention of a pandemic may demand lockdown, the closing of some public institutions, and curbing certain liberties such as the right of assembly or the freedom of information. Consequently, the more closely the exceptional power's potential is tailored to the threat to be overcome, the better the requirement of purpose limitation can be enforced, and the more the protection of the rule of law can be ensured.

In a broader sense, purpose limitation means that the purpose of the emergency is to restore the original (normal) legal order. In theory, this, by definition, excludes the permanence of a state of emergency as the latter replaces normalcy with an exception.

Overall, the requirement of purpose limitation is a kind of *ultra vires* rule³⁵ that delimits the freedom of action of the exceptional power.

³³ Lazar (2009), p. 4.

³⁴ For more details see Florczak-Wątor, Gárdos-Orosz, Maliř and Steuer (2024).

³⁵ Zwitter (2012), p. 100.

4.5 Necessity and Proportionality

One of the threats associated with the derogation of rights is that the greater the feeling of threat, the more likely it is that rights will be restricted that it would not be necessary to curtail to avert the danger. Another risk is that the authorization to limit rights is too abstract or general. The unpredictability of future and even immediate threats can contribute to these perils.

These problems can be traced back to the otherwise legitimate claim that the greater the imminent danger, the more extensive the exceptional power that may be necessary and justified. Undoubtedly, there may be a grey zone in all those cases when it is not possible to calculate in advance exactly what kind of fundamental rights restrictions will be required. However, these risks can be reduced by requiring the necessity and proportionality of emergency measures.

Deployment of the necessity-proportionality test in judging the constitutionality of the limitations of basic rights is widespread in European countries, just as balancing and strict scrutiny are important judicial constructions of judicial review in the USA. It is clear, however, that the criteria for determining the necessity and proportionality of rights restrictions during a state of emergency are different than in a normal legal order since the point of declaring a state of emergency and providing exceptional power is precisely to enable greater extensive State intervention in fundamental rights in order to overcome the crisis.

Constitutional studies on necessity and proportionality usually do not discuss the proportionality requirement applicable in emergency situations, primarily because, according to the widespread view, “during times of national emergency, judges tend to ascribe more weight to arguments favoring national security as opposed to those favoring individual rights”.³⁶ This was especially true in connection with the terrorist attacks of the early 2000s when public security considerations seemed to override all other interests,³⁷ but the panic caused by the Covid-19 pandemic³⁸ did not favour the enforcement of the requirements of necessity and proportionality either, even though, as later proven, these constitutional standards were seriously violated in many cases.

The requirement of necessity (or “adequacy”)³⁹ means that the exercise of exceptional power, especially the limitation of fundamental rights, is justified only if it is suitable and absolutely necessary to avert the danger. The requirement of proportionality goes even further than this: even those measures that are necessary for crisis management can only be limited to a degree that is proportionate to the goal to be achieved. It can, therefore, be seen that the requirements of necessity and proportionality applicable in emergency situations are similar to the standards of

³⁶ Barak (2012) p. 524.

³⁷ See e.g. Rosenfeld (2006); Scheinin (2013).

³⁸ Győry & Weinberg (2020) pp. 344, 347.

³⁹ Mei (2021), pp. 630–631.

fundamental rights restrictions under a normal legal order,⁴⁰ only their yardsticks or standards are different since the special legal order partly differs from the normal one in that fundamental rights may be suspended or may be restricted beyond the extent that would otherwise be applied. These standards cannot be normatively determined in advance, just as they cannot be under normal circumstances. The likelihood of courts being reluctant to review emergency provisions is probably the greatest in this regard.⁴¹ Judicial deference may be justified, leading to only a reasonableness test taking place, during which the court compares the goal of crisis management with the means actually used when examining the constitutionality or legality of the acts under review. This is not a futile activity: on the one hand, it forces the exerciser of exceptional power to justify its actions and decisions, and on the other hand, in relation to issues that require a political value choice, there is the possibility of a legislative investigation and holding the government to account vis-à-vis its political responsibility.⁴²

4.6 Controllability

If one of the hallmarks of the rule of law is that the exercise of public power requires control by independent bodies, then this must be even more true for the exercise of exceptional power.

Under normal circumstances, during a state of emergency, the legislature and the courts may primarily play a controlling role.⁴³

Emergency power is purpose-limited and needs specific justification: this is demonstrated by the fact that in special legal orders, constitutional rules place great emphasis on the continued functioning of the legislative branch; in times of emergency, it is not usually allowed to dissolve the latter or terminate its mandate, or to convene an extraordinary parliamentary meeting when the legislature is not in session. Typically, constitutional democracies, even in the most serious cases (e.g. situations of war), do not allow the suspension of the functioning of legislatures. Consequently, emergency governance, even in crisis situations, is not absolute or self-evident; it can only be used to introduce measures whose effectiveness or efficiency would be compromised by the procedural requirements of ordinary legislative law-making. And although in emergency situations emergency legislation under constitutional arrangements may temporarily derogate from certain laws and suspend their application, it would be a serious mistake to assume that emergency legislation may become a legal source superior to ordinary laws.

It is worth noting that the normal functioning of the legislature does not in itself make government by decree superfluous or unjustified, although this situation may

⁴⁰ For more details on these standards, see Klatt and Meister (2012); Barak (2012); Huscroft, Miller and Webber (2014); Jackson and Tushnet (2017).

⁴¹ Dyzenhaus (2006), p. 18.

⁴² Ondřejek and Horák (2024), pp. 27–51.

⁴³ Grogan and Beqiraj (2022) pp. 208–210.

intensify the legislative rivalry between the parliament and the executive power endowed with exceptional powers.

As for the former, certain characteristics of the legislative decision-making process (such as its time-consuming nature, polarization of opinions, and the publicity of procedures) can be real problems. Therefore, neither ex-ante authorization, which conceptually assumes broader empowerment, nor the more tailored ex-post approval of emergency measures can be objected to. However, it is essential that the control be effective, both in relation to the declaration and prolongation of the state of emergency, as well as the control of the associated measures. In any case, neither the weaker responsiveness of the legislature nor the fact that the legislative majority is often deferential to the executive power during an exigency can question the necessity of the political control of the exceptional power. Therefore, the proper involvement of the legislative power as the main representative body in the decision-making process of the state of emergency should be the norm and a requirement rather than a special model of crisis governance.⁴⁴

Legislative deference is always possible, but this is not a sufficient reason to exclude parliamentary oversight from the counterweights against the exceptional power.⁴⁵ As a matter of fact, constitutional crisis management is obviously most effective when all public bodies perform their functions properly, otherwise, the balance of power may be disrupted, and cooperation between public authorities may become impossible.

In addition to the political control exercised by the legislature, the judicial review of emergency measures and decrees is particularly important. This means that both normative decisions (i.e. emergency decrees) and individual measures taken within the framework of the exceptional power during a state of emergency must be subject to judicial review. In the former case, this involves constitutional review, while in the latter, it is judicial control of the legality of individual administrative decisions and legal protection by ordinary courts. Judicial review must cover all emergency acts; there is no reason, for example, for the declaration, extension or even termination of the state of emergency to be exempt from this since these decisions create the legal basis for all emergency actions.

Judicial review is not intended to check the adequacy or effectiveness of emergency decisions and acts but rather to ensure that the constitutional limits of exceptional powers are respected. As has already been said, courts are often more deferential to the executive power under a state of emergency than at other times because, as the usual argument claims, courts do not have the necessary expertise for handling such situations. In general, only the executive branch has the information and the means to select the instruments for crisis management.⁴⁶ In addition, according to the legal systems of several countries, it may also be the case that decisions in this area fall under the doctrine of political questions, i.e. they occur in an area where the courts have traditionally given greater leeway to the political branches in the

⁴⁴ Ferejohn and Paquino (2004), pp. 216–217.

⁴⁵ Lachmayer and Kettemann (2022), pp. 335–343.

⁴⁶ Posner and Vermeule (2007), pp. 4–5.

recognition that political discretion may play a significant role in such cases, which are primarily a matter of political responsibility and not subject to judicial review. In addition, courts “are susceptible to the pressures of events”, as are other public officials.⁴⁷ In addition, it may be in the institutional interest of courts not to encroach on shaky ground by sharing the responsibility for crisis management.

Although it seems that the latter considerations are not just theoretical ones, experience shows that the courts are reluctant to exercise strict control in matters of national security or during a health crisis⁴⁸; these situations should not offset the normative claim that the extended power, which under normal conditions of rule of law could not be tolerated, be subject to external, independent control. This does not mean that the courts should take over the tasks of any other body since they are really not suitable for crisis management. However, they must not renounce their own function of protecting human rights and guarding the legality of the exercise of public authority. Thus, the legitimate role of the courts during a state of emergency is primarily to monitor compliance with procedural norms and substantive rights review.⁴⁹ The latter should not be judged on the basis of their (lack of) crisis management skills but on the grounds that they are well-equipped to assess the regularity of decision-making procedures, identify the various interests at stake, and protect fundamental rights at the institutional level.

4.7 Restricted Areas

It is also an important rule-of-law standard during a state of emergency that certain rights, as well as democratic principles, cannot be suspended or curbed even under a special legal order. The claim that if there were no values such as the right to life or human dignity, or if democracy and the rule of law could be completely sacrificed, then crisis management itself would become meaningless hardly needs special justification. There are certain situations when the violation of these basic values is unavoidable; even in a just war, for example, people die for the freedom of other people or for certain ideas. However, this does not make sacrificing these values morally justifiable. Therefore, certain rights and constitutional principles must be absolute and untouchable, even in emergency situations.

It is a more difficult task to define these inviolable, unconditionally protected rights and principles.⁵⁰ In fact, it is not possible to circumscribe them with a normative force because the internal logic and traditions of constitutional polities are different. At the same time, in some international human rights treaties, the contracting

⁴⁷ Tushnet (2005) p. 41.

⁴⁸ Gross (2003), 1034.; Kreuder-Sonnen (2023), p. 129.

⁴⁹ However, as Ginsburg and Versteeg point out, in some cases courts may require the public authorities to take affirmative steps or to fulfil their constitutional obligations if they are necessary to overcome the crisis (Ginsburg & Versteeg, p. 1523). Nevertheless, the assessment framework that I propose does not apply to the “underreach” of the executive power, that is, to cases when the government body authorized to handle the crisis, for whatever reason, fails to fulfil its obligations. See for this Pozen and Scheppele (2020).

⁵⁰ For a broad comparison of related practice, see Richards and Chad Clay (2012).

parties commit themselves to the unconditional respect of certain rights,⁵¹ just as democratic constitutions usually define the scope of absolute rights.

In order to protect the principle of democracy, the constitutional provisions—as already noted—usually contain several regulations, the purpose of which is to ensure the minimum conditions for democratic decision-making, guaranteeing the continuous operation of representative bodies and courts, and/or at least the subsequent control of emergency acts.

5 Conclusions

The successive global and local crises of recent decades have encouraged a number of countries to introduce states of emergency, a special constitutional situation different from the normal legal order, within the framework of which specific rules can be applied. The basic feature of this has been that certain State bodies entrusted with crisis management were temporarily given exceptional powers to overcome threats to the most important constitutional values and restore the normal legal order. However, such extraordinary power poses a risk even to consolidated democracies, not only because it allows for more severe restrictions on fundamental rights and the setting aside of democratic decision-making norms but also because the expanded power can also be used to perpetuate the power positions of those in government and infringe basic rights. Earlier, both anti-terror and emergency policies against the Covid-19 pandemic were subject to severe criticism. However, the political, social, and even legal discourse on emergency policy is mostly unstructured and lacking a rational framework. This situation can be remedied if the requirements of the rule of law in emergencies can be operationalised, providing assessment criteria for social deliberation on these issues.

Such an intellectual enterprise is not new; there have already been attempts to formulate these standards, even if they were mainly tailored to specific times and places.⁵² Notwithstanding, it is worthwhile perpetually rethinking and re-evaluating the requirements of the rule of law during a state of emergency as we obtain novel experience with different types of crises, as well as the failures and risks associated with their management.

These standards can mainly be derived from modern conceptualizations of the rule of law and emergency situations, as well as exceptional power, striving for a rational balance among their opposing values. Table 1 presents the elements of such an analytical framework.

⁵¹ See, e.g. Fitzpatrick (1994) p. 67.; Teraya (2001); Sottiaux (2018) pp. 1073–1074.

⁵² The best-known example is Clinton Rossiter's eleven conditions for bestowing "constitutional dictatorship" (Rossiter 2002); in an American context, see Schlesinger (1973) pp. 450–451, and Bruce Ackerman's so-called "supermajoritarian escalator" proposal for a procedural guarantee to reduce the risks of emergency power, Ackerman (2004), pp. 1047–1053. In Europe, the Venice Commission of the Council of Europe tried to collect the rule of law and democratic standards related to the state of emergency, see European Commission for Democracy through Law (Venice Commission) (2020) Compilation of Venice Commission Opinions and Reports on States of Emergency. CDL-PI(2020)003, Strasbourg.

Table 1 A simplified scheme for the assessment of rule-of-law violations in emergency situations

Rule-of-law standard	Rule-of-law violation(s)
Separation of emergency powers	The authority to declare/terminate the state of emergency is not separated from the emergency powers
Legality	Emergency measures are not based on legal norms
Temporariness	Permanent special legal order or unjustified prolongation of state of emergency Incorporation of emergency measures into the normal legal system
Purpose limitation	Exceptional power is not used to defeat danger
Necessity and proportionality	The applied measures are i) not needed to cope with the crisis; they ii) disproportionately violate basic rights or democratic principles (compared to the legitimate aim to be achieved)
Controllability	Emergency measures and decrees are not reviewed by independent bodies who investigate the political responsibility of the power-holder and the legality of the emergency actions
Restricted areas	All fundamental rights can be derogated, and all democratic and rule-of-law values can be abandoned

Such an assessment framework can be used in analysing the exercise of exceptional power and examining whether it violates the core of the rule of law, which should not be abandoned even under extraordinary circumstances. Although there is a fairly broad consensus about these standards among those who do not consider emergency situations to be extra-legal phenomena, these criteria apparently can be set in a different structure compared to the one presented here, while additional aspects and requirements may be formulated, especially considering that the level of abstraction of the various standards of the rule of law is different and controversial. But no matter how inevitable the relevant debates about this issue are, it is more important to have accountable and, where appropriate, enforceable requirements. Lacking these, the social panic caused by successive crises provides an opportunity for enemies of the rule of law to permanently limit or even eliminate the rule of law and the democratic exercise of public power.

Funding The author has no relevant financial or non-financial interests to disclose.

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